

GRANT summary judgment because no triable issues of material fact exist.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2406927	MUNOZ vs CITY OF BANNING	MOTION FOR DISCLOSURE AND USE OF PEACE OFFICER PERSONNEL RECORDS (PITCHESS MOTION)

Tentative Ruling:

Moving party: Plaintiff Robert Jauregui-Munoz
Responding party: Defendant City of Banning

This Fair Employment and Housing (“FEHA”) action arises from Plaintiff Roberto Jauregui-Munoz’ (“Plaintiff”) employment in City of Banning’s (“City”) Police Department.

The operative complaint is the Third Amended Complaint (“TAC”), which Plaintiff filed against City on September 4, 2025, alleging causes of action for: (1) Racial Discrimination in Violation of FEHA; (2) Racial Retaliation under FEHA; and (3) Failure to Prevent.

In the TAC, Plaintiff alleges that he presented himself as a Hispanic male to his employer, City’s Police Department, where he has worked since 2012. Plaintiff contends that in October 2018, Doug Schulze (“Schulze”), a white male, became City Manager. In 2019, Schulze hired Matthew Hamner (“Chief Hamner”) as the Chief of City’s Police Department, then hired Jeff Horn (“Horn”) as a Captain. Plaintiff alleges that Schulze, Chief Hamner, and Horn are all white males, friends, and came from Bainbridge Island, Washington.

Plaintiff alleges that since 2019, after Schulze became City Manager, Plaintiff has consistently been denied promotions and other work opportunities because of his race. Plaintiff alleges that the division between the races in the Police Department was so widely known that a formal investigation was initiated where it was alleged that the department was informally divided into a “Mexican Gang” and “White Gang.” Plaintiff alleges that there was widespread favoritism of white officers, and that whenever a new white officer joined the department, senior white officers would offer them more training, guidance, and resources.

Plaintiff alleges that he served as Treasurer of the Banning Police Officers’ Association (“Union”) in 2020 and 2021, in which he promoted fair and equal opportunities so race that would not be a factor in determining employment opportunities. Plaintiff alleges that as a result of his outspoken views on the racial

divide, Chief Hamner and other white supervisors deliberately circumvented Police Department policy, tradition, and California law to promote white officers over Plaintiff.

Plaintiff alleges that on October 15, 2021, a sergeant's position was posted, and several people were promoted to this position. Plaintiff contends that despite being a corporal, testing high for the position, maintaining proper certification, and covering as Acting Sergeant, Plaintiff was passed over three times for this role by white officers (Brandon Smith, Derek Thesier, and Richard Youngblood) with lower ranks and qualifications. Plaintiff alleges that afterward, he became more vocal about more transparent promotional practices, openly expressing to other officers that the results from every promotional exam should be posted for each officer's review per Police Department tradition, and requested Chief Hamner provide him with the list of each candidate's scores on the sergeant's exam, as was traditional practice in the Police Department. Plaintiff alleges Chief Hamner refused to do so or engage in discussions about the promotional process.

In July 2022, Chief Hamner invited certain sergeants to test for a lieutenant position. Plaintiff alleges Chief Hamner only invited four white Sergeants to test and did not invite Plaintiff or Sergeant Jack Loera, both of whom are Hispanic, to test. Plaintiff alleges that Brandon Smith and Derek Thesier, two of the white officers whom Chief Hamner invited to test, were not eligible to test pursuant to department policy. Specifically, City's job duty statement for a Lieutenant (Job Code: 2025) provides that the minimum qualifications are 3 years of law enforcement management and a POST supervisory certification, which is only awarded to those who possess a minimum of two years of law enforcement experience as a permanent first level supervisor or higher. Plaintiff alleges Derek Thesier was promoted to Lieutenant after only seven months of his first supervisory role with the department and Brandon Smith was promoted to Lieutenant less than 11 months after receiving his first supervisory role with the department, in violation of the two-year post requirements under 11 C.C.R. § 1202 and City's own job requirements.

In early 2022, Captain Horn stepped in as Acting Chief after Chief Hamner filed for medical disability. In October 2022, Plaintiff became Vice President of the Union, where he alleges he continued to advocate for fair and equal employment opportunities and continued to be denied promotion opportunities. On July 24, 2023, Lieutenant Derek Thesier became Acting Chief.

Plaintiff now applies under *Pitchess* for the personnel files belonging to himself, Chief Hamner, Thesier, Smith, Youngblood, and Horn, and documents related to the promotional process for Lieutenant and Sergeant positions from 2018 to the present. The personnel files sought include eligibility for promotion to Sergeant and Lieutenant; promotional applications, scoring sheets, rankings, and results; waiver, exception, or deviation from promotional requirements; POST certification records and documents supporting supervisory eligibility; complaints, investigations, or disciplinary actions alleging discrimination, retaliation, favoritism, or abuse of authority; and personnel action forms indicating promotions in the past 5 years. Plaintiff further seeks records

relating to Thesier's role in decision-making affecting Plaintiff, Chief Hamner's involvement in the promotions of Smith, Thesier, and Youngblood, and Horn's involvement in promotional decisions.

In opposition, City clarifies that it is not objecting to the disclosure of Plaintiff's own personnel records (Request Nos. 1-8); the Promotability Packets and scoring sheets of the 12 candidates for the 2021 Sergeant promotional exam; or the non-privileged documents contained in the requested personnel records.

However, City objects to the disclosure of any documents in the foregoing categories that are protected by **attorney-client privilege** or the **attorney work product** doctrine. City further contends that Plaintiff has not demonstrated good cause for the disclosure of the requested discipline documents, POST certifications, and performance evaluations of other police officers, as the interview panel members did not consider these documents when they evaluated the 12 candidates during the 2021 Sergeant promotional exam process. City further argues that no good cause exists for the disclosure of the July 2022 Lieutenant promotional exam process, as only Sergeants were legible to be promoted, and Plaintiff was not promoted to Sergeant until October 2022.

In reply, Plaintiff contends that he has established good cause and asserts that the requests are narrowly tailored. Plaintiff further argues that City's counsel should not be permitted to attend the in camera review of records bearing on City's own liability.

Request for Judicial Notice

Plaintiff seeks judicial notice of the tentative ruling from Dept. 10 that excludes the presence of counsel from attending a *Pitchess* document review. **DENY** the request, as the circumstances of an unrelated case and courtroom are irrelevant to this matter.

Analysis

Pursuant to **Evidence Code section 1043** and **Penal Code section 832.7**, police officer personnel records, or records concerning citizen complaints made against peace officers are privileged and may not be disclosed except under a motion under sections 1043 and 1046 (a "*Pitchess* motion"). The *Pitchess* motion must be accompanied by a declaration showing good cause for the disclosure of the records, sets forth the materiality of the records, and stating upon reasonable belief that the governmental agency has the requested documents. (Evidence Code §1043(b)(3).)

Good cause must be sufficiently specific to preclude the possibility of merely seeking helpful information. (*People v. Mooc* (2001) 26 Cal.4th 1216, 1226.) The moving party only needs to show a plausible factual foundation for discovery. (*Warrick v. Superior Court (City of Los Angeles Police Dept.)* (2005) 35 Cal.4th 1011, 1019.) All that is required is the presentation of a scenario that may have or could have occurred, which is a relatively low threshold. (*Uybungco v. Superior Court* (2008) 163 Cal.App.4th 1043, 1048.) An attorney declaration based upon information and belief and containing

hearsay may be used to evidence good cause in support of a *Pitchess* motion. (*Haggerty v. Superior Court*. (2004) 117 Cal.App.4th 1079, 1086.)

“Good cause for discovery exists when the defendant shows both ‘ ‘materiality’ to the subject matter of the pending litigation and a ‘reasonable belief’ that the agency has the type of information sought.’ ” [Citation.] A showing of good cause is measured by “ ‘relatively relaxed standards’ ” that serve to “ ‘insure the production’ ” for trial court review of “ ‘all potentially relevant documents.’ ” (*Warrick, supra*, 35 Cal.4th at 1016.) It “is a ‘relatively low threshold for discovery.’ ” (*Id.* at 1019.)

However, “ ‘[t]he relatively low threshold for discovery embodied in section 1043 is offset in turn, by Evid. Code § 1045’s protective provisions which: (1) explicitly “exclude from disclosure” certain enumerated categories of information [Citation]; (2) establish a procedure for *in camera* inspection by the court prior to any disclosure [Citation]; and (3) issue a forceful directive to the courts to consider the privacy interests of the officers whose records are sought and take whatever steps “justice requires” to protect the officers from “unnecessary annoyance, embarrassment or oppression” ’ ” (*Alford v. Superior Court* (2003) 29 Cal.4th 1033, 1039.) “This two-step process for discovery of peace officer personnel records balances the officer’s strong privacy interests in his or her own personnel records with the needs of civil litigants and criminal defendants to obtain information *material to their claim* or defense. [Citations.]” (*Riske v. Superior Court* (2016) 6 Cal.App.5th 647, 656-657 [emphasis added].)

A. Sergeant and Lieutenant Promotional Exam Process

Plaintiff seeks records regarding City’s Sergeant and Lieutenant promotional exam processes from 2018 to the present. (Notice, § VII and VIII.) However, the TAC only contains allegations regarding the 2021 Sergeant promotional exam process and 2022 Lieutenant promotional exam process. (TAC, ¶¶ 18-19, 22-25.) Accordingly, **Request Nos. 37-44** are restricted to the 2022 Lieutenant promotional exam process, and **Request Nos. 45-52** are restricted to the 2021 Sergeant promotional exam process.

City objects to the disclosure of any records from the 2022 Lieutenant promotional exam process (Request Nos. 37-44), as it contends that Plaintiff was not eligible for promotion because he did not retain the rank of Sergeant until after the exam took place. However, Plaintiff contends that Thesier and Smith were also ineligible to test based on their failure to meet minimum qualifications and POST certifications, but that Hamner invited them to test and promoted them to Lieutenant anyways. (TAC, ¶¶ 22-25.) As such, good cause exists for the disclosure of these requested documents, but only as to the named officers. Thus, the Court **GRANTS** the motion as to **Request Nos. 37-44**, but restrict it to the 2022 Lieutenant promotional exam process. The Court further restrict disclosure of records subject to **Request Nos. 42-44** as to Thesier and Smith only.

B. Performance Evaluations and POST Certifications

Request Nos. 18, 42, and 50 sought the POST certifications for Thesier and all applicants for the Lieutenant and Sergeant positions. **Request Nos. 43 and 51** sought the performance evaluations for all applicants for the Lieutenant and Sergeant positions. Although City's Opposition states that the interview panel did not consider these types of documents when they evaluated the 12 candidates during the 2021 Sergeant promotional exam process, there is no evidence, such as a declaration from a panel member, to support this contention. (Opp., p. 12.) Further, City's argument is contradicted by the Sergeant and Lieutenant job descriptions that it produced, which indicate that the job requirements include certain POST certificates and, for the Sergeant position, current performance evaluations. (Abrena Decl., Exh. 1-2 and 2-2.)

Here, the TAC alleges that in 2021, Smith, Thesier and Youngblood were promoted to Sergeant over Plaintiff, who had more experience, higher rank, and was more qualified. (TAC, ¶ 19.) The TAC also alleges that Thesier and Smith were ineligible to test for the Lieutenant exam based on their failure to meet minimum service time requirements and POST certifications, but that Hamner invited them to test in July 2022 and promoted them to Lieutenant anyways. (TAC, ¶ 22-25.) As such, good cause exists for the disclosure of Thesier's POST certifications (Request No. 18). **GRANT** as to **Request No. 18**. However, good cause does not exist for the disclosure of the POST certifications and performance evaluations of *all* applicants to the Lieutenant and Sergeant positions from 2018 to the present. Specifically, the TAC only alleges that Smith, Thesier, and Youngblood were improperly promoted in the 2021 Sergeant promotional process, and that Smith and Thesier were improperly promoted in the S022 promotional process. (TAC, ¶ 18-19, 22-25.) Accordingly, the disclosure of records subject to **Request Nos. 42-43 and 50-51** are limited to the 2021 Sergeant promotional process as to Smith, Thesier, and Youngblood, and the 2022 Lieutenant promotional process as to Smith and Thesier.

C. Disciplinary Actions and Investigations

City further objects to **Request Nos. 9, 19, 26, 31, and 33** to the extent that they seek documents relating to disciplinary actions and investigations alleging racial discrimination, retaliation, favoritism, abuse of authority, or unequal treatment against Hamner, Thesier, Smith, Youngblood, and Horn, where there were no sustained findings of prejudice or discrimination.

Similar to the above, City contends that the interview panel members did not consider applicants' disciplinary history when they evaluated the 12 candidates during the 2021 Sergeant promotional exam process. (Opp., p. 12.) However, City's assertion is unsupported by any evidence. Further, City provides no legal authority or argument as to why the Court should restrict the requests to only those investigations that resulted in sustained findings of discriminatory conduct. Penal Code section 832.7(b)(1)(D) provides that peace officer personnel records relating to an incident in which a sustained finding was made that a peace officer engaged in conduct involving prejudice or discrimination against a person based on race or national origin shall not be confidential, so these records may be subject to disclosure without a *Pitchess* motion.

Here, Plaintiff demonstrates good cause for the disclosure of the requested records, as Plaintiff alleges he complained to City of racial discrimination and retaliation, and the TAC's third cause of action is for failure to prevent discrimination and retaliation. Government Code §12940(k) creates a separate actionable tort for failure to take reasonable steps necessary to prevent discrimination. Retaliation is a form of discrimination actionable under section 12940(k), therefore making it unlawful for an employer to fail to prevent retaliation. (*Taylor v. City of Los Angeles Dept. of Water & Power* (2006) 144 Cal.App.4th 1216, 1239-1240, disapproved of on other grounds by *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158.) Accordingly, City's prior knowledge of any complaints, investigations, or disciplinary actions against its employees regarding racial discrimination, retaliation, favoritism, abuse of authority, or unequal treatment are relevant to Plaintiff's claim of failure to prevent discrimination and retaliation. **GRANT** as to **Request Nos. 9, 19, 26, 31, and 33**.

D. In Camera Review and Protective Order

Upon a finding of good cause, the court must hold an in camera hearing to determine whether the requested materials are relevant. (*Slayton v. Superior Court* (2006) 146 Cal.App.4th 55, 61; *Brown v. Valverde* (2010) 183 Cal.App.4th 1531, 1541.) City's concerns about overbreadth, privacy, and the production of irrelevant information will be addressed at that stage. If any records are ordered to be disclosed, the Court must issue a protective order limiting their use to this litigation only. (Evid. Code § 1045(e).) Both parties have acknowledged and agreed to this requirement.

1. Attendance at In Camera Review

Evid. Code § 1045(b) mandates that the court "shall examine the information in chambers in conformity with Section 915." Evid. Code 915(b) provides the controlling rule for attendance at the in camera review. It states:

[T]he court may require the person from whom disclosure is sought or the person authorized to claim the privilege, or both, to disclose the information in chambers out of the presence and hearing of all persons except the *person authorized to claim the privilege* and any other persons as the person authorized to claim the privilege is *willing to have present*.

(Evid. Code, § 915(b) [emphasis added].) In *People v. Mooc*, 26 Cal.4th 1216, the California Supreme Court described the statutory scheme as one that "require[s] the intervention of a neutral trial judge, who examines the personnel records in camera, *away from the eyes of either party*, and orders disclosed to the defendant only those records that are found both relevant and otherwise in compliance with statutory limitations." (*Id.*, at 1227 [emphasis added].)

Here, the parties agree that Plaintiff and his counsel are excluded from attending the in camera review of the personnel records in dispute. However, Plaintiff contends that City and its counsel should also be excluded from attendance.

The issue here is that the defendant public entity is both the litigant and the custodian of records. However, the *Mooc* court read the statutory provisions together. Apart from the “away from the eyes of either party” principle, the Supreme Court clarified how the review should be conducted in conformity with the statutes:

The trial court examines the information in chambers, “out of the presence and hearing of all persons except the person authorized [to possess the records] and such other persons [the custodian of records] is willing to have present.”

(*People v. Mooc, supra*, 26 Cal.4th at 1226, citing Evid. Code, §§ 915(b) and 1045 (b).) Further, in *Riverside County Sheriff’s Dept. v. Stiglitz* (2014) 60 Cal.4th 624, the Supreme Court reaffirmed that “to protect the officer’s privacy, the examination of documents and questioning of the custodian should be done in camera in accordance with the requirements of Evidence Code section 915.” (*Id.* at 639, citing *Mooc, supra*, 26 Cal.4th at 1229.) As such, the proper interpretation is that the exclusion of “either party” is the default rule, and the limited exception in § 915(b) allows only designated individuals to attend at the discretion of the privilege holder.

The question now becomes who qualifies as such a designated individual, i.e., whether City can designate its own counsel to appear at the review. Here, the “person authorized to claim the privilege” as to the personnel records is the individual officer whose confidential records are at issue. Officers have a “legitimate expectation of privacy in his or her personnel records.” (*Stiglitz, supra*, 60 Cal.4th at 643, citing *Mooc, supra*, 26 Cal.4th at 1220.) Section 915(b) requires that any person attending the in camera review, other than the privilege holder, must be someone the “person authorized to claim the privilege is willing to have present.” There is no evidence that the individual officers have consented to the presence of City’s outside litigation counsel at the in camera review of their personnel records. Accordingly, the statutory prerequisite for counsel’s attendance has not been met, and City cannot waive the individual officers’ privacy rights to allow its own litigation counsel to participate. Thus, **the Court excludes City’s counsel from in camera review as to the officers’ personnel records.**

However, City and counsel may be present at the in camera review as to only the records upon which City claims attorney-client privilege and attorney work product protection. Evidence Code § 915(b) authorizes the presence of “the person from whom disclosure is sought or the person authorized to claim the privilege, or both” while the court performs an in camera review to determine whether attorney work product privilege exists. Here, City is the entity authorized to claim the attorney-client privilege, and City’s counsel is the person authorized to claim attorney work product protection. (*Melendrez v. Sup. Ct.* (2013) 215 Cal.App.4th 1343, 1353 [“The attorney, not the client, is the exclusive holder of the work product privilege. [Citation.] ... The attorney-client privilege, however, is held by the client. (Evid. Code, § 953 (a).)”].)

City fails to identify which documents it claims are protected by the attorney-client privilege and work product doctrine, but nevertheless seeks to exempt them from initial disclosure. However, under Evid. Code § 915(b), the proper procedure is to require City

to disclose all documents upon which it claim privileges to allow the Court to determine whether any privilege exists. As such, City is ordered to disclose all documents at the in camera hearing. Further, the Court permits City and its counsel to attend only the portion of the in camera review regarding the documents they claim are subject to the **attorney/client privilege** and **attorney work product doctrine**.

2. Exclusions from Disclosure

City contends that the Court should exclude from disclosure any complaints more than 5 years old, the conclusions of any officer investigating a complaint, and facts that are so remote as to make disclosure of little or no practical benefit under Evidence Code section 1045(b). However, the current version of section 1045(b) contains no time limitation and only excludes the conclusions of any officer investigating a complaint “**in any criminal proceeding**.” Accordingly, the Court denies the request to limit the disclosure of records to those less than 5 years old and exclude officer conclusions.

City then requests that neither Plaintiff nor his counsel may learn what documents were disclosed under Evidence Code section 915. However, section 915 only prohibits the Court from disclosing any information it deems privileged, not from disclosing the existence of all documents provided for review. (Evid. Code § 915(b).)

As for City’s request for a protective order, Plaintiff contends that City’s proposed language is based on a superseded version of Evidence Code § 1045(b). As such, Plaintiff agrees to a protective order so long as it conforms to the current version of the statute. (Reply, p. 12.)

Summary:

DENY Plaintiff’s request for judicial notice in full.

The motion is **MOOT** as to Request Nos. 1-8.

GRANT the motion as to Request Nos. 9-36.

GRANT IN PART as to Request Nos. 37-44, but limit the disclosure to the 2022 Lieutenant promotional exam process. Further limit Request Nos. 42-44 to Thesier and Smith only.

GRANT IN PART as to Request Nos. 45-52, but limit the disclosure to the 2021 Sergeant promotional exam process. Further limit Request Nos. 50-52 to Thesier, Smith, and Youngblood only.

DENY City’s request to exclude from disclosure any complaints more than 5 years old, the conclusions of investigating officers, and the existence of documents provided for in camera review.

ALLOW City and its counsel to attend the in camera review of documents subject to

claims of *attorney-client privilege* and *attorney work product*. **EXCLUDE** City and its counsel from attending the in camera review of personnel records that are not subject to a claim of attorney-client privilege or attorney work product.

GRANT City's request for a protective order, but the Court orders City to submit a revised order that conforms to the current version of Evidence Code § 1045(b).

Documents submitted for Court review in Camera shall either be in paper, hard copy or placed on a single flash drive with nothing other than the submitted documents.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2407308	LBS FINANCIAL CREDIT UNION vs ALVAREZ	NOTICE OF APPLICATION FOR WRIT OF POSSESSION

Tentative Ruling:

This application is without opposition. Accordingly, the application is granted. The Court has signed the submitted proposed order. Moving party to give notice of ruling.